IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

CA-119/2025
In
CA.(CAA)-34(ND)/2025

Section 420(2) of the Companies Act, 2013, read with Rule 154 and Rule 11 of the National Company Law Tribunal Rules, 2016

IN THE MATTER OF CA-119/2025

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. R SYSTEMS INTERNATIONAL LIMITED

...Applicant Company No. 1/Amalgamated Company

AND

M/s. VELOTIO TECHNOLOGIES PRIVATE LIMITED

...Applicant Company No. 2/Amalgamating Company No. 1

AND

M/s. SCALEWORX TECHNOLOGIES PRIVATE LIMITED

...Applicant Company No. 3/ Amalgamating Company No. 2

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 10.06.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,

HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN,

HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant(s) : Ms. Shikha Tandon, Adv.

ORDER

PER: DR. SANJEEV RANJAN, MEMBER (TECHNICAL)

1. The present Application has been filed by the Applicant Companies, before this Adjudicating Authority under Section 420(2) of the Companies Act, 2013, read with Rule 154 and Rule 11 of the National Company Law Tribunal Rules, 2016 seeking rectification of the order dated 22.05.2025 passed by this Tribunal.

2. Keeping in view the fact, we deem it appropriate to issue a modified order with corrections. Accordingly, the modified order is issued as under:

   I. Paragraph No. 10 of the order of this Tribunal dated 22.05.2025 in CA.(CAA)-34(ND)/2025 (hereinafter referred to as "Earlier Order") which reads as:

   "Having heard the submissions made by the Ld. Counsel and having perused the records as well as the documents placed on record, we allow the prayer of the Applicant Companies as under:

   a) We allow the prayer for convening and holding meetings of Equity Shareholders and Unsecured Creditors of Applicant No. 1. We further allow the prayer for dispensation from convening and holding the meeting of its Secured Creditors, in view of the consent affidavit filed by the sole Secured Creditor constituting 100% in value of the outstanding secured debt as on 12.03.2025.

   b) We allow the prayer for convening and holding the meeting of Unsecured Creditors of Applicant No. 2. We further allow the prayer for exemption from convening and holding meetings of its Equity Shareholders and the holders of optionally convertible redeemable preference shares (OCRPS), in view of the consent affidavits filed by 2 Equity Shareholders and 6 OCRPS holders,

holding 100% in number and value as on 14.03.2025 and 28.02.2025 respectively. We further allow the prayer for exemption from holding the meeting of its Secured Creditors, in view of there being none.

c) We allow the prayer for dispensation from convening and holding meetings of its Equity Shareholders, Secured Creditors, and Unsecured Creditors, in view of the consent affidavits submitted by the Equity Shareholders holding 100% of the shareholding in number and value as on 14.03.2025, and the absence of any Secured or Unsecured Creditors."

May be read as:

"*Having heard the submissions made by the Ld. Counsel and having perused the records as well as the documents placed on record, we allow the prayer of the Applicant Companies as under:*

a) We allow the prayer for convening and holding meetings of Equity Shareholders and Unsecured Creditors of Applicant No. 1 through electronic means, including remote e-voting. We further allow the prayer for dispensation from convening and holding the meeting of its Secured Creditors, in view of the consent affidavit filed by the sole Secured Creditor constituting 100% in value of the outstanding secured debt as on 12.03.2025.

b) We allow the prayer for convening and holding the meeting of Unsecured Creditors of Applicant No. 2 through electronic means, including remote e-voting. We further allow the prayer for exemption from convening and holding meetings of its Equity Shareholders and the holders of optionally convertible redeemable preference shares (OCRPS), in view of the consent affidavits filed by 2 Equity Shareholders and 6 OCRPS holders, holding 100% in number and value as on 14.03.2025 and

28.02.2025 respectively. We further allow the prayer for exemption from holding the meeting of its Secured Creditors, in view of there being none.

c) We allow the prayer for dispensation from convening and holding meetings of its Equity Shareholders, Secured Creditors, and Unsecured Creditors, in view of the consent affidavits submitted by the Equity Shareholders holding 100% of the shareholding in number and value as on 14.03.2025, and the absence of any Secured or Unsecured Creditors."

II. Paragraph No. 16 and 17 of the Earlier Order, which reads as:

"16. In case the quorum as noted above for the above meeting of the Applicant Companies is not present at the meetings, then the meetings shall be adjourned by half an hour, and thereafter the persons present and voting shall be deemed to constitute the quorum. The Chairperson and Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the Applicant Companies to attain at least the quorum fixed, if not more, in relation to the approval of the scheme. The Applicant Companies shall be at liberty to determine the venue, for convening and holding the respective meetings, subject to compliance with applicable provisions of the Companies Act, 2013 and the Rules framed thereunder.

17. Individual notices of the above said meetings shall be sent by the Applicant Companies through e-mail and through speed post, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme of Amalgamation, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also

be sent along and in addition to the above, any other documents as may be prescribed under the Act or rules may also be duly sent with the notice."

May be read as:

"16. In case the quorum as noted above for the above meeting of the Applicant Companies is not present at the meetings, then the meetings shall be adjourned by half an hour, and thereafter the persons present and voting shall be deemed to constitute the quorum. However, every endeavour should be made by the Applicant Companies to attain at least the quorum fixed, if not more, in relation to the approval of the scheme.

17. Individual notices of the above said meetings shall be sent by the Applicant Companies through e-mail or through speed post, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme of Amalgamation, copy of explanatory statement, required to be sent under the Companies Act, 2013, and any other document as may be prescribed under the Act or rules may also be duly sent with the notice."

III. Paragraph No. 18 and 19 of the Earlier Order, which reads as:

"18. The Applicant Companies shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the "Business Standard" English Delhi NCR Edition and "Business Standard" Hindi Delhi NCR Edition stating the copies of Scheme of Amalgamation, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the Applicant Companies.

19. Voting shall be allowed on the proposed Scheme by voting in person or through proxy as per the guidelines issued by Ministry of Corporate Affairs."

May be read as:

"18. The Applicant Companies shall publish advertisement with a gap of at least 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the "Business Standard" English Delhi NCR Edition and "Business Standard" Hindi Delhi NCR Edition stating the copies of Scheme of Amalgamation, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 shall be provided free of charge at the registered office of the Applicant Companies.

19. Voting shall be allowed on the proposed Scheme by voting through electronic means, including remote e-voting as per the guidelines issued by Ministry of Corporate Affairs."

3. In view of the above **CA-119/2025 is disposed of**.

Sd/-

(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)